

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on May 27, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/user/ProvoChannel17 and on Facebook facebook.com/provochannel17.

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **June 23, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Review of Chapters 1-12 of the Title 14 Rewrite Draft – Aaron Ardmore

Public Hearings

- * Item 1 Provo Public Works requests a General Plan amendment to update the Wastewater Collection Master Plan (Appendix G of the General Plan). Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLGPA20260191
- * Item 2 Provo Public Works request adoption of the Storm Drain Master Plan into the General Plan along with an associated Impact Fee Facility Plan. Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLGPA20260193
- Item 3 Dudley & Associates request Project Plan approval for an infill development project that includes 26 new residential units in the MDR (Medium Density Residential) Zone, located approximately at 258 West 200 North. Timp Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20260061
- * Item 4 Development Services requests Ordinance Text Amendments to Provo City Code 14.37 to add a reduction for projects near bus rapid transit stations and to amend associated parking regulations. Citywide Application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20260080
- * Item 5 Development Services requests an Ordinance Text Amendment to Provo City Code 15.24.030 to amend the area requirement for agriculture protection areas. Citywide Application. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLOTA20260120
- Item 6 Election of new Chair and Vice Chair

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov.



PROVO CITY CORPORATION
DEVELOPMENT SERVICES DEPARTMENT
Planning Commission Agenda
May 27, 2026

Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff reports are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff reports are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/agendacenter.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



-
- *ITEM 1** Provo Public Works requests a General Plan amendment to update the Wastewater Collection Master Plan (Appendix G of the General Plan). Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLGPA20260191
-

APPLICANT: Lane Pierce APPLICATION TYPE: Legislative Decision – Planning Commission will make a recommendation to the City Council.

NEIGHBORHOOD FEEDBACK

A neighborhood meeting was not held for this item.

PROJECT SUMMARY

Provo City owns and operates a water reclamation facility and a wastewater collection system. The wastewater collection system consists of approximately 310 miles of gravity sewer pipelines, ranging from 6-inch sewer lines to 42-inch sewer lines and 15 sewer lift stations owned and operated by the city. The City's new membrane bioreactor reclamation facility is rated at 21 Million Gallons per Day (MGD) with a hydraulic capacity of 16 MGD.

The Wastewater Collection System Master Plan evaluates the City's wastewater pipeline infrastructure and reclamation facility in several criteria. The key points of the Master Plan are:

1. Hydraulic Analysis (sewer model) – Analyze the existing system for current pipe capacity deficiencies and future growth to determine future capacity deficiencies, based on current zoning and current planned developments.
 - a. Key points of concern
 - i. Northeast Area has near future sewer pipeline capacity deficiencies.
 - ii. West of I-15 has future sewer pipeline capacity deficiencies.
2. Condition Assessment – Determine deficiencies in the current pipelines, lift stations, and Treatment Plant.
 - a. Key points to note
 - i. Large portion of the system has older pipes that are failing.
 - ii. Treatment Plant is updated to meet new EPA standards.
 - iii. Determine Locations of inflow and infiltration to our sewer pipelines.
3. Capital Improvement Program
 - a. Addresses projects that will eliminate system deficiencies.
 - b. Discusses rate increases to fund future projects in order to maintain existing system.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves

the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: The purpose is to update the existing Wastewater Master Plan to show system deficiencies and future projects necessary with occurring growth.

Staff Response: This amendment provides needed updates for best practices for critical infrastructure.

FINDING: Meets the standard.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: Public Works says this plan is the best way to analyze Provo's system and plan for the future.

Staff Response: Maintaining the wastewater collection system to high standards serves general health, safety, and public welfare.

FINDING: Meets the standard.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: The Wastewater Collection Master Plan is consistent and uses the General Plan densities to determine growth.

Staff Response: The proposed plan is compatible and furthers General Plan goals.

FINDING: Meets the standard.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response: The proposed plan has used the updated area plans and general plan documents to have the most updated "timing and sequencing" land use. It even discusses some of the larger potential growth from developers that have been submitted for review but not yet approved.

Staff Response: The amendment to update the plan is consistent, and there are no conflicts.

FINDING: Meets the standard.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response: Public Works does not believe this plan will hinder or obstruct the general plan policies.

Staff Response: The amendment furthers General Plan goals. Staff do not foresee any way in which the amendment would hinder or obstruct or otherwise be in conflict.

FINDING: Meets the standard.

(f) Adverse impacts on adjacent landowners; and

Applicant Response: This plan uses the land uses as laid out in the General Plan and neighborhood plans. It will not have any adverse impacts on landowners any more than the General Plan would.

Staff Response: Staff anticipates no adverse impacts to adjacent landowners.

FINDING: Meets the standard.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: The proposed plan update does not change any zoning and follows the General Plan zoning.

Staff Response: This amendment does not conflict and would help provide adequate utility services to all zones.

FINDING: Meets the standard.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response: No conflict.

Staff Response: No conflict.

FINDING: Meets the standard.

APPLICABLE ZONING CODES

There are no applicable zoning codes. The proposed amendment would be added as an appendix to the General Plan.

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan.
“I make a motion that we forward a recommendation to the Provo City Council to adopt the Wastewater Collection Master Plan.”
2. **Recommend Denial:** The proposal is not consistent with the General Plan.
“I make a motion that we forward a recommendation to the Provo City Council to deny the Wastewater Collection Master Plan.”
3. **Continue:** New information presented at the public hearing or additional study needs to be done.
“I make a motion that we continue the proposed Wastewater Collection Master Plan to allow for further discussions.”

ATTACHMENTS

1. Link to the Proposed New Text for the Wastewater Collection Master Plan

ATTACHMENT 1: LINK TO THE PROPOSED NEW TEXT FOR THE WASTEWATER COLLECTION MASTER PLAN

The full plan is 176 pages long and cannot be attached to this staff report. To view the proposed plan, please visit the following webpage or follow the directions below:

<https://tinyurl.com/mryze3x6>

Or go to [Provo.gov/Planning](https://provo.gov/Planning) and click on “Plans Pending Adoption.”

***ITEM 2** Provo Public Works request adoption of the Storm Drain Master Plan into the General Plan along with an associated Impact Fee Facility Plan. Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLGPA20260193

APPLICANT:	Carlos Garcia
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

NEIGHBORHOOD FEEDBACK

A neighborhood meeting was not held for this item.

PROJECT SUMMARY

The Provo City Storm Drain Master Plan (SDMP) is a comprehensive long-range planning document that evaluates the existing storm drain system and identifies current and future stormwater infrastructure needs. The plan establishes an approach for safely conveying and managing stormwater based on projected land use, anticipated development patterns, hydrology, and accepted engineering standards.

The SDMP identifies recommended system improvements needed to support growth, reduce flood risk, and protect public infrastructure. Adoption of the plan will provide Provo City with a guiding document for stormwater planning, development review, and long-term budgeting.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: The purpose of this amendment is to update the existing Storm Drain Master Plan that evaluates the existing storm drain system and identifies current and future stormwater infrastructure needs.

Staff Response: This amendment provides needed updates for best practices for critical infrastructure.

FINDING: Meets the standard.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: The proposed amendment is determined to be in the best interest of the Public and is consistent with the goals and objectives of Provo City.

Staff Response: Maintaining storm drains to high standards serves general health, safety, and public welfare.

FINDING: Meets the standard.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: The proposed Storm Drain Master Plan is partially derived from the General Plan with regards to land use, development, and overall growth. Therefore, it is determined to be consistent with the policies, goals, and objectives of the General Plan.

Staff Response: The amendment is compatible and furthers General Plan goals.

FINDING: Meets the standard.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response: The proposed Storm Drain Master Plan is partially derived from the General Plan with regards to land use, development, and overall growth. Therefore, it is determined to be consistent with the General Plan's "timing and sequencing."

Staff Response: The amendment is consistent, and there are no conflicts.

FINDING: Meets the standard.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response: There is no potential for the proposed amendment to hinder or obstruct General Plan policies.

Staff Response: The amendment furthers General Plan goals. Staff do not foresee any way in which the amendment would hinder or obstruct or otherwise be in conflict.

FINDING: Meets the standard.

(f) Adverse impacts on adjacent landowners; and

Applicant Response: There are no anticipated adverse impacts on adjacent

landowners.

Staff Response: Staff anticipate no adverse impacts to adjacent landowners.

FINDING: Meets the standard.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: The proposed Storm Drain Master Plan is partially derived from the General Plan with regards to land use, development, and overall growth. Therefore, it is determined to be correct and consistent with General Plan zoning.

Staff Response: This amendment does not conflict and would help provide adequate utility services to all zones.

FINDING: Meets the standard.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response: No conflict.

Staff Response: No conflict.

FINDING: Meets the standard.

APPLICABLE ZONING CODES

There are no applicable zoning codes. The proposed amendment would be added as an appendix to the General Plan.

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan.
“I make a motion that we forward a recommendation to the Provo City Council to adopt the Storm Drain Master Plan.”
2. **Recommend Denial:** The proposal is not consistent with the General Plan.
“I make a motion that we forward a recommendation to the Provo City Council to deny the Storm Drain Master Plan.”
3. **Continue:** New information presented at the public hearing or additional study needs to be done.
“I make a motion that we continue the proposed Storm Drain Master Plan to allow for further discussions.”

ATTACHMENTS

1. Link to the Proposed New Text for the Storm Drain Master Plan
2. Link to the Proposed New Text for the Storm Drain Impact Fee Facility Plan and Impact Fee Analysis

ATTACHMENT 1: LINK TO THE PROPOSED NEW TEXT FOR THE STORM DRAIN MASTER PLAN

The full plan is 79 pages long and cannot be attached to this staff report. To view the proposed plan, please visit the following webpage:

<https://tinyurl.com/3wud8j9h>

Or go to [Provo.gov/Planning](https://provo.gov/Planning) and click on “Plans Pending Adoption.”

Attachment 2: Link to the Proposed New Text for the Storm Drain Impact Fee Facility Plan and Impact Fee Analysis

The full plan is 15 pages long and cannot be attached to this staff report. To view the proposed plan, please visit the following webpage:

<https://tinyurl.com/yeuu724h>

Or go to [Provo.gov/Planning](https://provo.gov/Planning) and click on “Plans Pending Adoption.”

ITEM 3 Dudley & Associates request Project Plan approval for an infill development project that includes 26 new residential units in the MDR (Medium Density Residential) Zone, located approximately at 258 West 200 North. Timp Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20260061

APPLICANT:	Dudley & Associates c/o Roger Dudley
PROPERTY OWNER:	CHURCH FAMILY LLC,
PARCEL ID:	04:086:0010, 04:086:0011, 04:086:0012, 04:086:0013, 04:086:0013, 04:086:0014, 04:086:0015, 04:086:0016, 04:086:0017, 04:086:0019, 04:086:0020,
ACREAGE:	2.12
CURRENT LEGAL USE:	Residential
GENERAL PLAN DESIGNATION:	Residential Conservation
CURRENT ZONE:	MDR (Medium Density Residential)
APPLICATION TYPE:	Administrative Decision – must be approved if it meets all city standards.

PROPERTY HISTORY:

In December 2025, a concept plan (PLCP20250441) to allow infill development and restoration and reuse of existing homes was approved by the Planning Commission.

In January 2026, a rezone request (PLRZ20250431) to have the zone changed to MDR was approved by the City Council with a development agreement and deed restrictions.

A development agreement (DA) was approved by the City Council when the property was rezoned to MDR. This DA is in the final stages to be signed and recorded but has not yet been recorded. The Planning Commission would be able to include the recording of the DA as a condition of approval.

NEIGHBORHOOD FEEDBACK:

No information has been provided to staff for this project.

PROJECT SUMMARY:

The applicant has submitted a project plan request for property located at approximately 258 W 200 N. The plan proposes keeping the existing homes and adding 26 infill units. The MDR zone allows up to 30 units per acre, and the development agreement limits the density to 17 units per acre.

The development agreement requires that the existing 7 dwellings are sold to owner occupants and that they will be single-family residences in perpetuity.

On the vacant corner of 300 W and 300 N will be a new 4-plex. There will be two 3-bedroom units above grade with a two-car garage, and there will be two 3-bedrooms units below grade. This property will be sold, and it will be stipulated that each above-grade unit must be owner occupied in perpetuity.

The adjacent property to the west is currently zoned RC and the rest of the surrounding property is zoned DT1 (General Downtown).

The applicant has also submitted plat applications to create new lots. They are currently under review by the Coordinator Review Committee (CRC). Once CRC has approved the plat applications, they will need to be recorded. The Planning Commission would need to include this as a condition of approval for this project plan.

STAFF ANALYSIS

Proposed Use: Residential apartments and single-family detached homes.

Finding: The project will consist of 26 new residential units and the other existing residential homes along 300 West and along 300 North, will be converted back to single-family homes from duplexes and triplexes.

Lot Standards:

Required: Minimum lot area: 20,000 square feet

Proposed: Over 49,000 square feet

Finding: Complies

Density maximum:

Required: 30 units per acre

Proposed: 17 units per acre

Finding: Complies. Development agreement limits the density to 17 units per acre.

Setback Requirements:

Required: Front: 20'; Side: 10'; Rear: 20'

Proposed: Front: 13.87', Side: 10.47', Rear: 20+'

Finding: Complies per 14.14B.040(7) with director allowing for modifications to setbacks. The proposed setbacks are visually compatible with neighboring development and do not cause an undue burden or harm to the adjacent property. Surrounding property is part of the development and adjacent zone is DT1 which allows buildings to go to the property line.

Building Height and Distance:

Required: Maximum building height: 45'; minimum distance between buildings: 15'

Proposed: Height: 30' 6" distance between buildings: 18'

Finding: Complies

Parking:

Required: 1.5 stalls per one-bedroom and 2.25 stalls per two and three-bedroom (54 total stalls required)

Proposed: 54 stalls provided (garages 14, driveways 6, surface 34)

Finding: Complies

Bike Parking:

Required: Short-term: 4 Long-Term: 9

Proposed: Short-term: 4 Long-Term: 10

Finding: Complies

Landscaping:

Required: Parkstrip trees every 25'. Parking lot landscaping requirements: parking islands every 5 parking stalls.

Proposed: Landscaping shown in parking lot areas every 5 parking stalls.

Finding: Complies. Trees are provided every 25' in parkstrips.

Design Standards:

Required: Hard surface pedestrian connections from street; entrances to front on pedestrian way; building materials need to be from approved list

Proposed: There are pedestrian accesses provided on hard surfaces; the entrances front on pedestrian ways; the building exteriors will be fiber cement board, and it is an approved exterior finish.

Finding: Complies

APPLICABLE ZONING CODES

Provo City Code **14.14B, 14.34.287, 14.37, 15.20**

POSSIBLE MOTIONS AND FINDINGS:

The Planning Commission may make any of the following findings:

1. **Approve:** The proposal is consistent with city code.
Motion to approve the proposed project plan for 26 new infill units at approximately 258 West 200 North with the following conditions:
 - a. The development agreement associated with the rezone is recorded;
 - b. The plats that are under review by CRC are recorded.(State findings/reasons)
2. **Deny:** The proposal is not consistent with city code.
Motion to deny the proposed project plan for 26 new infill units at approximately 258 West 200 North. (State findings/reasons)
3. **Continue:** New information presented at the public hearing or additional study needs to be done.
Motion to continue this item. (State findings/reasons)

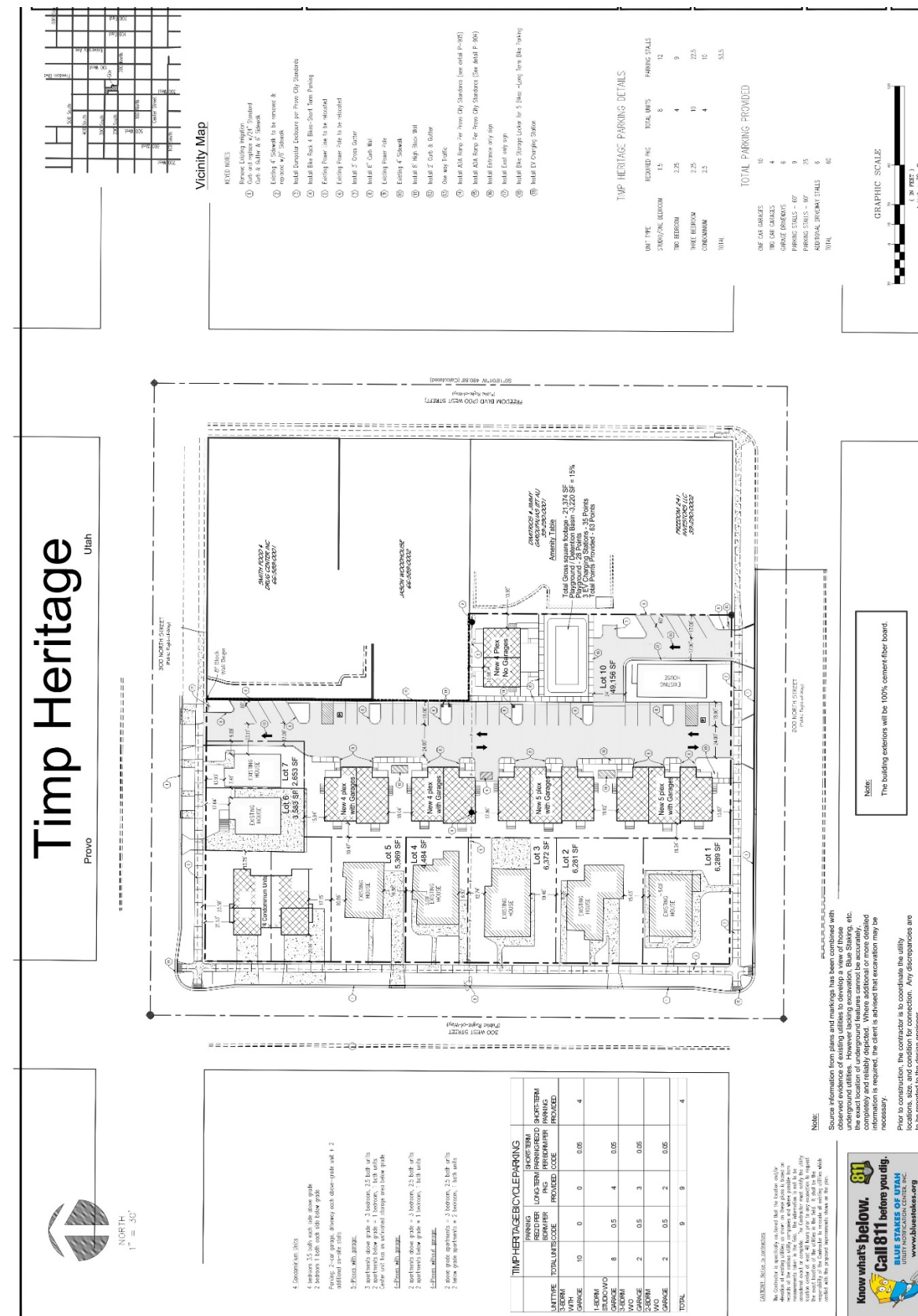
ATTACHMENTS

1. Area Map
2. Site Plan
3. Landscape Plan
4. Elevations

ATTACHMENT 1 – AREA MAP OF APPROXIMATELY 258 W 200 N



ATTACHMENT 2 – SITE PLAN

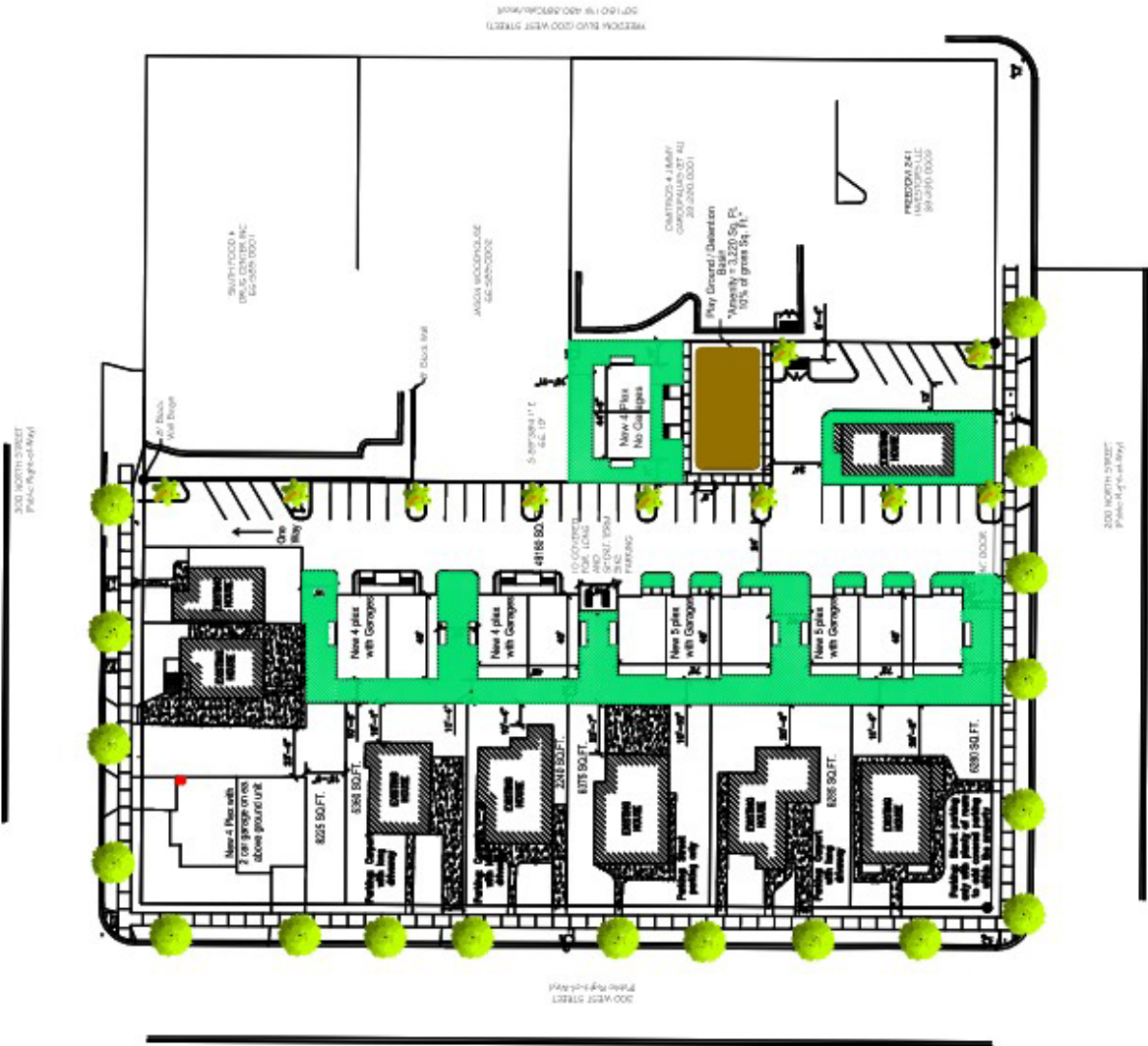


ATTACHMENT 3 – LANDSCAPE PLAN

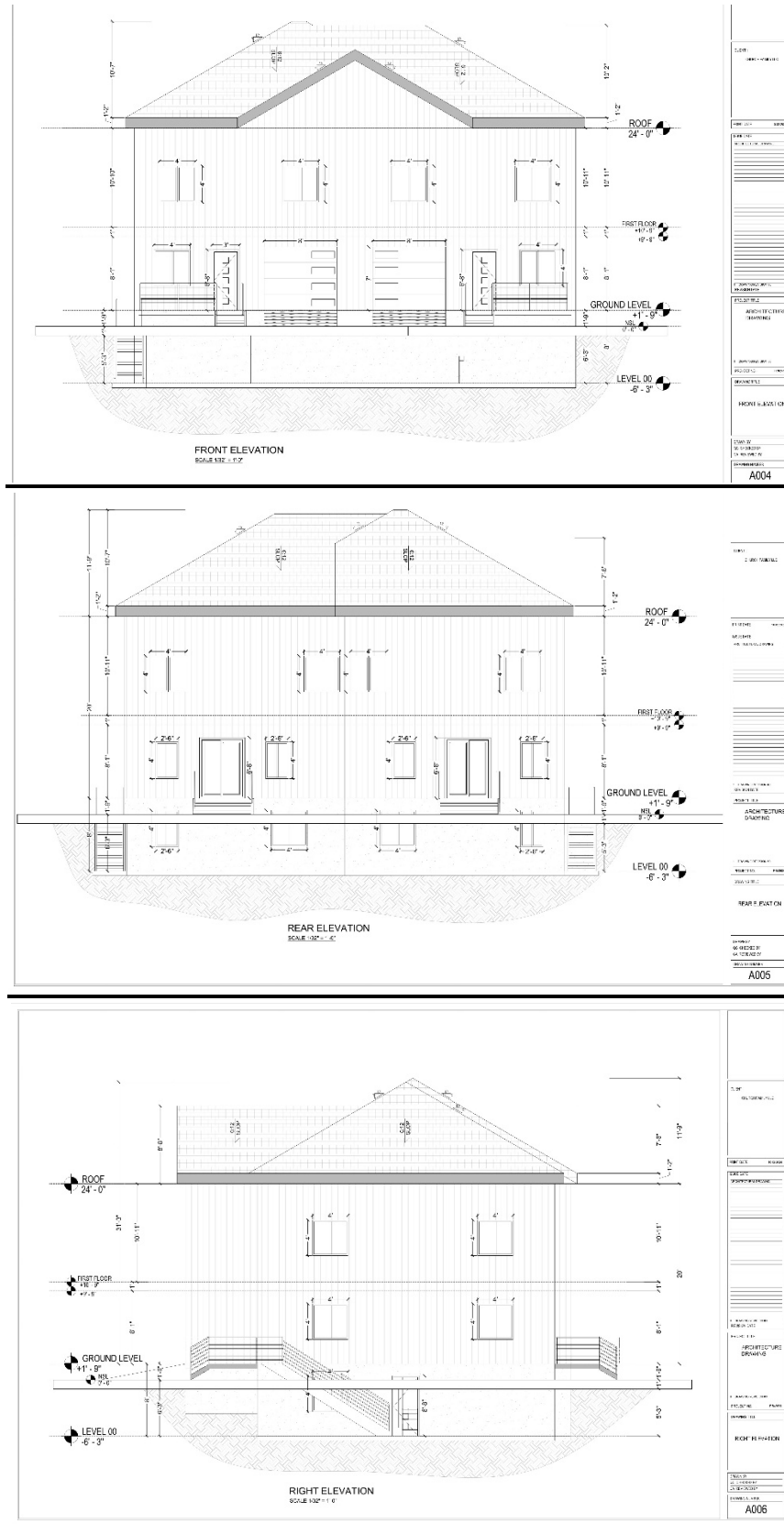
LANDSCAPE PLAN – GENERAL NOTES

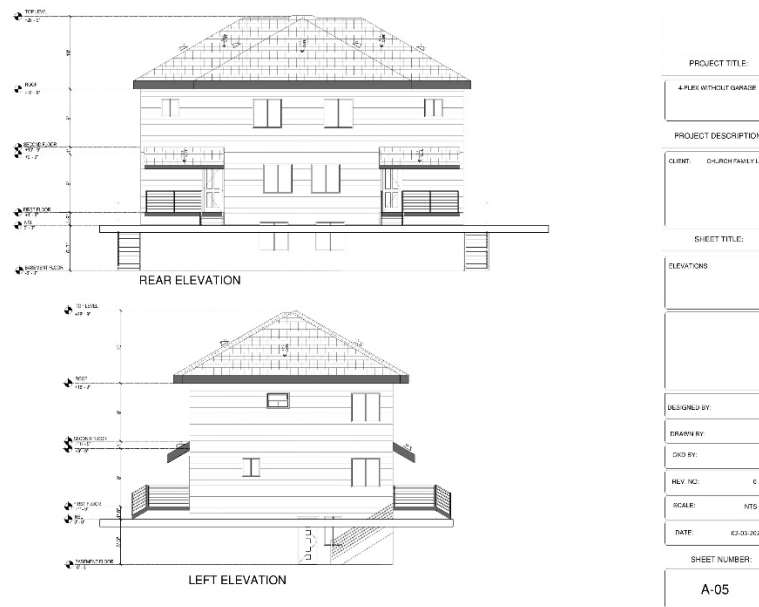
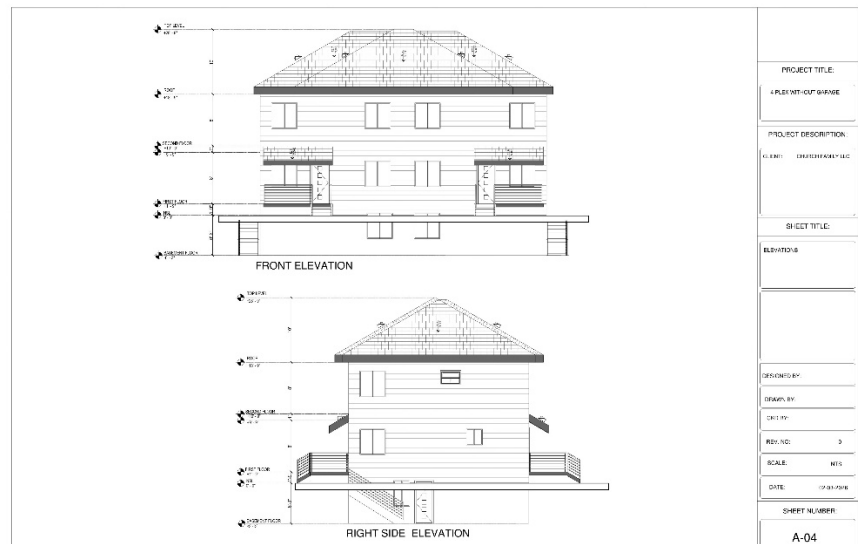
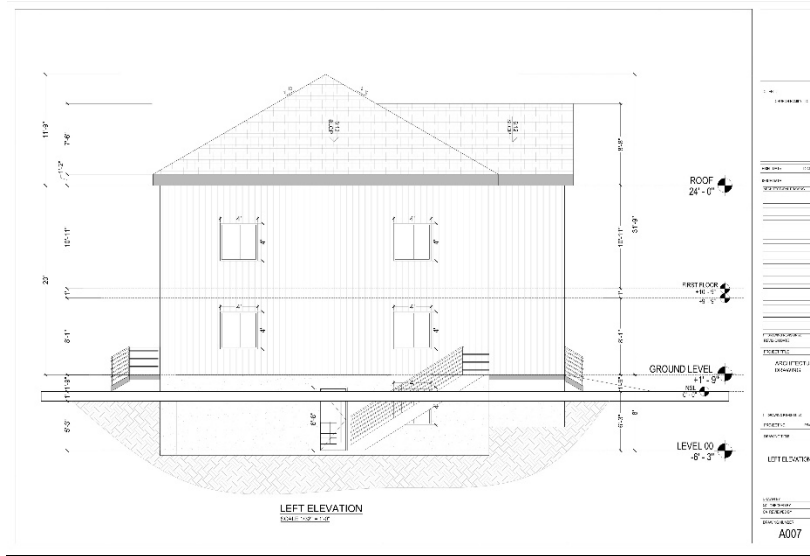
- Landscape improvements shall comply with Provo City Code Title 15.20 Landscaping Standards.
- Landscape plans shall be prepared and stamped by a licensed landscape architect where required by the City.
- All landscaped areas shall be irrigated by an automatic irrigation system.
- Plant materials shall be healthy, nursery-grown stock, free of disease and defects.
- Trees and shrubs shall be planted in accordance with industry standards and manufacturer recommendations.
- Landscaping within parking areas shall comply with Provo City Code 15.20.090, including required landscape islands and planting areas.
- Plant spacing and layout shall provide adequate growth area and visibility clearance.
- Contractor shall verify existing utilities and site conditions prior to planting.
- Dead or damaged plant materials shall be replaced prior to final project acceptance.
- All landscaping shall be maintained in a healthy condition by the property owner.

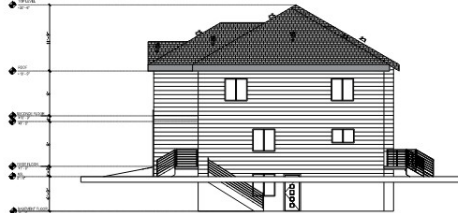
Legend	
	Ground cover / grass area
	Shade tree - Elm or maple
	Large canopy tree (Existing Tree)
	Engineered wood fiber



ATTACHMENT 4 – ELEVATIONS



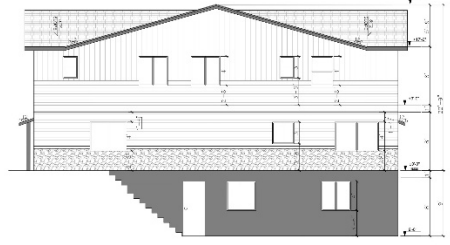


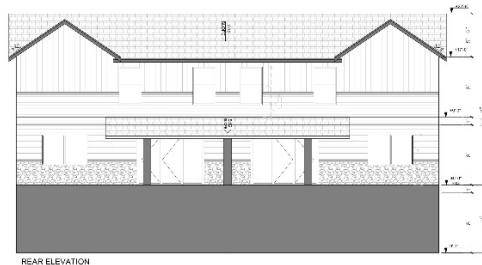
 FRONT ELEVATION	PROJECT TITLE: S-FLUX WITH GARAGE
	PROJECT DESCRIPTION: CLIENT: CHURCH FAMILY LLC
 RIGHT SIDE ELEVATION	SHEET TITLE: ELEVATIONS
	DESIGNED BY: DRAWN BY: CHK BY: REV. NO.: 0 SCALE: NTS DATE: 02-03-2025 SHEET NUMBER: A-04

 REAR ELEVATION	PROJECT TITLE: S-FLUX WITH GARAGE
	PROJECT DESCRIPTION: CLIENT: CHURCH FAMILY LLC
 LEFT ELEVATION	SHEET TITLE: ELEVATIONS
	DESIGNED BY: DRAWN BY: CHK BY: REV. NO.: 0 SCALE: NTS DATE: 02-03-2025 SHEET NUMBER: A-05

 FRONT ELEVATION	PROJECT TITLE: S-FLUX WITH GARAGE
	PROJECT DESCRIPTION: CLIENT: CHURCH FAMILY LLC
 RIGHT SIDE ELEVATION	SHEET TITLE: ELEVATIONS
	DESIGNED BY: DRAWN BY: CHK BY: REV. NO.: 0 SCALE: NTS DATE: 02-03-2025 SHEET NUMBER: A-04

 REAR ELEVATION	PROJECT TITLE:
	EXTERIOR GARAGE
 LEFT ELEVATION	PROJECT DESCRIPTION:
	CLIENT: CHURCH FAMILY LLC
	SHEET TITLE:
	ELEVATION:
	DESIGNED BY:
	DRAWN BY:
	REV. NO. 1
	SCALE: NTS
	DATE: 02-03-2026
	SHEET NUMBER:
	A-05

 FRONT ELEVATION	PROJECT TITLE:
	Architecture Drawings
 RIGHT SIDE ELEVATION	PROJECT DESCRIPTION:
	CLIENT: SACRED HEART CHURCH
	SHEET TITLE:
	ELEVATION:
	SCALE: NTS
	DATE: 02-03-2026
	SHEET NUMBER:
	A-09

 REAR ELEVATION	PROJECT TITLE:
	Architecture Drawings
 LEFT SIDE ELEVATION	PROJECT DESCRIPTION:
	CLIENT: SACRED HEART CHURCH
	SHEET TITLE:
	ELEVATION:
	SCALE: NTS
	DATE: 02-03-2026
	SHEET NUMBER:
	A-010

***ITEM 4** Development Services requests Ordinance Text Amendments to Provo City Code 14.37 to add a reduction for projects near bus rapid transit stations and to amend associated parking regulations. Citywide application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20260080

APPLICANT: Development Services APPLICATION TYPE: Legislative Decision – Planning Commission will make a recommendation to the City Council.
--

NEIGHBORHOOD FEEDBACK

This application has citywide impact, but there have been no public comments received regarding this item at the time this report was written.

PROPOSAL SUMMARY

The Development Services Department is proposing a variety of amendments to the parking code in an effort to attract redevelopment near campus and bus rapid transit stations. The specific language proposed is shown in “Attachment 1” of this report but are all related to this goal.

The first proposed amendment is to Provo City Code (PCC) 14.37.050, the section that describes options for reduction in off-street parking requirements. The proposal in this section is to allow a by-right fifty percent (50%) reduction for any new multifamily or commercial development if the property is located within one-quarter mile of a bus rapid transit station.

The second proposed amendment is to PCC 14.37.060, which enumerates parking spaces required for different uses. The proposal here is to remove the “Joaquin South Campus Planning Area” language under the “baching singles” section and replace it with two simpler standards that can apply to any new baching multifamily or mixed-use development within one-eighth mile and one-quarter mile of BYU campus. The current standard is an overly complicated paragraph that leaves room for variation based on what occupancy is told to the city. Staff seek to replace that with a simple standard based on maximum allowable occupancy for this type of development adjacent to campus, and keep the current standard for projects between the two distances.

The third section with proposed amendments is PCC 14.37.080, General Provisions, but is specifically seeking to amend the location standards in subsection one to allow multifamily developments to count off-street parking spaces on a separate property, subject to certain criteria. Off-site parking has been permitted for commercial uses for years. In effort to use parking infrastructure more efficiently, the ability to count off-site parking for residential has merit.

Approval of any of the proposed amendments should help to develop areas of the city that are expected to have higher density since parking can be a financial or logistical obstacle to new

development or redevelopment.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: The purpose of the proposed amendments is to reduce barriers to new development and redevelopment in areas of the city that are expected to provide denser housing and a mix of uses.

FINDING: Complies.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: The proposed amendments would reduce the biggest obstacle to redevelopment for higher densities; the cost of on-site parking.

FINDING: Complies.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: There are several adopted goals that these amendments could address:

- **General Plan, ch.3, goal 1:** Strike a balanced approach in locating land uses that aligns transit, land use, economics, and open space;
- **General Plan, ch.3, goal 3:** Review and revise Provo City Code to make it more consistent and accessible;
- **General Plan, ch.4, goal 1b:** Consider revising regulations to encourage development of a mix of housing types;
- **General Plan, ch.4, goal 1f:** Encourage more options for entry level housing including smaller lots and mixed housing, as well as smaller unit sizes including studios and apartments;
- **General Plan, ch.4, goal 2:** Strive to increase the number of housing units of all types across the whole of Provo in appropriate and balanced ways;
- **General Plan, ch.5, goal 1:** Employ innovative approaches to promote local business and create community;
- **General Plan, ch.6, goal 3:** Find the right balance of parking to promote the local economy and encourage alternative transportation;
- **General Plan, ch.6, goal 4b:** Relieve automobile congestion and reduce stress on roadways by promoting multimodal choices;
- **Conservation and Resiliency Plan, Mobility, goal 3:** Work toward maximizing access to different transportation options for all members of the community;
- **Conservation and Resiliency Plan, Mobility, goal 4:** Promote the use of mass transit;

- **Downtown Master Plan, ch.4, goal 2:** Continue to amend regulations for new development as the area continues to evolve;
- **Joaquin Neighborhood Plan, ch.4, goal 7:** Efficiently manage supply of parking to meet growing demands.

FINDING: Complies.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response: There are no timing and sequencing issues related to this proposal.

FINDING: Not applicable.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response: This proposal does not hinder or obstruct attainment of the General Plan's articulated policies.

FINDING: Complies.

(f) Adverse impacts on adjacent land owners; and

Applicant Response: This is a citywide application with potential impact in several areas. Adverse impacts could include an initial discomfort with a reduced parking standard but could also see a shift in behavior that could ease pressure to over-occupy and split existing single-family homes.

FINDING: Complies.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

FINDING: Not applicable

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

FINDING: Not applicable.

APPLICABLE ZONING CODES

Provo City Code 14.37 (Off-Street Parking Standards:
<https://provo.municipal.codes/Code/14.37>)

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan. *The Planning Commission recommends approval of the proposed text amendments to the City Council (state findings).*
2. **Recommend Denial:** The proposal is not consistent with the General Plan. *The Planning Commission recommends denial of the proposed text amendments to the City Council (state findings).*
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *The Planning Commission moves to continue this item (state findings/reasons).*

ATTACHMENTS

1. Proposed Amendments

ATTACHMENT 1 – PROPOSED AMENDMENTS

14.37.050 Reduction in Off-street Parking Requirements

(1) *Purpose and Intent.* The Provo City General Plan encourages the application of transportation demand management strategies to reduce traffic congestion and to lessen the amount of land that must be devoted to parking for commercial, industrial, or public facility uses. Accordingly, the purpose of this Section is to allow flexibility in off-street parking requirements for commercial, industrial, public facility, or multifamily residential uses based on the standards set forth herein. This Section shall not be used to reduce parking for baching single residential projects.

.

.

(4) *Proximity to Bus Rapid Transit Station.* Required parking for new multifamily or commercial development located within a one-quarter-mile radius of a bus rapid transit station platform may be reduced by up to 50%, when the following criteria are met:

- (a) There is no on-street parking on streets fronting the development;
- (b) There are no single-family residential zones immediately adjacent to the development; and
- (c) Parking fees, when used, must be combined with rent.

(5) *Combination of Reductions.*

- (a) Development in the DT1, DT2, or ITOD zones may not combine the reduction provided in Subsection (4) with any other parking reduction permitted in the applicable zone.
- (b) Development in any zone may not combine the reduction provided in Subsection (4) with any other parking reductions permitted in PCC 14.37.050.

14.37.060 Parking Spaces Required

Except as otherwise provided in this Title, the number of off-street parking spaces for varied uses/areas shall be as follows:

.

.

.

BACHING SINGLES

1 to 6 bedrooms

Minimum of two (2) spaces per bedroom plus .25 spaces per unit visitor parking, with a maximum of three (3) bedrooms per unit, if the bedrooms are over one hundred (100) square feet. If the bedrooms are less than one hundred (100) square feet, one (1) space per bedroom plus one quarter (.25) spaces per unit visitor parking, with a maximum of six (6) bedrooms per unit, if the bedrooms are under one hundred (100) square feet. Recreational vehicles shall not be allowed in the required parking area.

~~Joaquin South Campus Planning Area
(between University Ave. and 900 E.; 500 N. to the southern boundary of BYU campus)~~

~~Minimum .80 parking space per tenant
plus .20 parking spaces per unit for~~

~~visitors and for the disabled as outlined in Section 14.37.110, Provo City Code, Disabled Parking Spaces. Recreational vehicles shall not be allowed in the required parking area.~~

Proximity to Brigham Young University (BYU).

Any new multifamily or mixed-use development within a one-eighth mile of BYU must provide a minimum of .5 spaces per tenant based on maximum allowable occupancy.

Any new multifamily or mixed-use development greater than one-eighth mile, but no greater than one-quarter mile of BYU must provide a minimum of .8 spaces per tenant plus .2 space per unit.

.
.
.

14.37.080 General Provisions

The following general provisions shall apply to off-street parking requirements in this Chapter:

(1) *Location.* Off-street parking facilities ~~shall~~ must be located as follows ~~hereinafter specified:~~

(a) For one-family, duplex, and ~~multiple residential~~ townhome dwellings, required parking shall be located on the same lot as the building which they are required to serve.

(b) For all other uses ~~(i.e., commercial uses),~~ required parking ~~shall~~ must be located on the same lot or on an abutting lot.

(c) Required parking ~~shall~~ may not be located across a public street, or with an intervening property, except by a conditional use permit approved by the Planning Commission, subject to the following conditions: ~~set forth in Section 14.34.320, Provo City Code. In the event a separately owned lot is utilized, a lease shall be recorded with the Utah County Recorder.~~

(i) Off-street parking approved under this Section must be located such that the nearest property line of the parking lot is within 400 feet of the nearest property line of the lot containing the land use activity it serves, measured along the shortest pedestrian route, except in:

(A) Portions of any DT zone located within the area bounded by University Avenue, 200 South, 300 West, and 200 North.

(B) Parking for properties described in this subsection may be located up to 800 feet from the building it serves, subject to Planning Commission approval.

(ii) If the parking lot is across the street from the use it serves, it must be within 200 feet of a regulated intersection or approved crosswalk in the direction of pedestrian traffic.

(iii) The applicant must, at their own expense, submit a report from a qualified Traffic Engineer assessing probable vehicular and pedestrian impacts from the off-site parking lot and including any safety mitigation recommendations.

(iv) The applicant must assume full liability and responsibility for the parking lot, including costs for any safety-related improvements.

(v) The Planning Commission will grant the permit if, after staff review, the off-site lot poses no significant traffic safety concerns and complies with all other provisions of this Title.

(vi) If a separately owned lot is used, a lease must be recorded with the Utah County Recorder.

***ITEM 5** (Development Services requests an Ordinance Text Amendment to Provo City Code 15.24.030 to amend the area requirement for agriculture protection areas. Citywide Application. Jessica Dahneke (801) 852-6413 jdahneke@provo.gov PLOTA20260120)

APPLICANT:	Development Services
PROPERTY OWNER:	Citywide Application
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

PROJECT SUMMARY:

The proposed text amendment makes two key changes to the agricultural protection area requirements. First, it removes the requirement that a property must be enrolled in the Farmland Assessment Act also referred to as 'Greenbelt' in order to qualify. Second, it reduces the minimum area required to establish an agricultural protection area from five acres to one. These changes increase opportunities for farmers in agricultural zones to establish stronger protection of their agricultural rights.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) the public purpose served by the amendment;

Staff Response: The purpose of this amendment is to expand the number of farmers who can apply for their property to be in an agricultural protection area.

FINDING: Complies

(b) the most effective means of achieving that purpose;

Staff Response: Reducing the area requirement and removing the greenbelt benefit requirements is the most effective way of creating more opportunities for interested property owners to create agricultural protections areas while still meeting the state code.

FINDING: Complies

(c) compatibility with General Plan goals and policies;

Staff Response: The proposed text amendment is compatible with the following general plan goals and policies.

General Plan:

Open Space and Recreation

2. Give careful consideration to the conservation of open spaces, scenic areas, and viable agricultural land.

3a. Increase access and education around local food production.

Conservation and Resiliency Plan

4a. Continue to preserve agricultural land through conservation easements and selling of development rights as appropriate.

FINDING: Complies

(d) consistency with the timing and sequencing provisions of the General Plan;

Staff Response: The proposed text amendment is consistent with the timing and sequencing provisions of the General Plan.

FINDING: Complies

(e) potential interference with General Plan implementation;

Staff Response: The proposed text amendment does not interfere with the implementation of General Plan goals and policies.

FINDING: Complies

(f) any adverse impact on nearby properties; and

Staff Response: There are no adverse impacts on surrounding properties.

FINDING: Complies

(g) preference for General Plan policies over the General Plan Map, if the two conflict.

Staff Response: This proposed text amendment does not conflict with the General Plan policies or the General Plan Map.

APPLICABLE ZONING CODES

Provo City Code 15.24.030:

In accordance with Utah Code Annotated Section 17-41-301, as amended, the minimum number of continuous acres that must be included in an agriculture protection area within Provo City is five (5) acres, which land must be receiving the benefits of Title 59, Chapter 2, Farmland Assessment Act, Utah Code Annotated, as amended (commonly called “greenbelt”).

(Enacted 2023-24)

<https://provo.municipal.codes/Code/15.24.030>

POSSIBLE MOTIONS AND FINDINGS:

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan.
The Planning Commission recommends approval of the proposed ordinance text amendment of Provo City Code 15.24.030 to the City Council
2. **Recommend Denial:** The proposal is not consistent with the General Plan.
The Planning Commission recommends denial of the proposed ordinance text amendment of Provo City Code 15.24.030 to the City Council
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *The Planning Commission continues this item to a future hearing (state findings and reasons)*

ATTACHMENTS

1. Proposed Ordinance Text amendment Language

ATTACHMENT 1 – PROPOSED ORDINANCE TEXT LANGUAGE

15.24.030 Area Requirements.

In accordance with Utah Code Annotated Section ~~17-81-201~~ 17-41-301, as amended, the minimum number of continuous acres that must be included in an agriculture protection area within Provo City is ~~one (1) five (5)~~ one (1) acres, ~~which land must be receiving the benefits of Title 59, Chapter 2, Farmland Assessment Act, Utah Code Annotated, as amended (commonly called “greenbelt”).~~